

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**PETITION FOR LEAVE TO SUPPLEMENT EXCEPTIONS OF COMPLAINANTS TO
THE INITIAL DECISION ISSUED IN THIS PROCEEDING BY THE PRESIDING
OFFICER ON JANUARY 17, 2017**

On February 8, 2017, the undersigned, Counsel for complainants MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY (collectively “complainants”), filed exceptions to the January 17, 2017 Initial Decision (“ID”) of the Presiding Officer, which dismissed, in part complainants’ claims that respondents had violated the Shipping Act of 1984, 46 U.S.C. §40101, et. seq. (the “Shipping Act”) due to an alleged lack of subject matter jurisdiction and/or for failure to state a claim upon which relief can be granted” with respect to the ocean transport of a 2006 Mercedes SL65 (the subject “Mercedes”).

Pursuant to FMC Rule 230(d), 46 C.F.R. 502.230(d), the undersigned now requests leave of the Commission to supplement the record with additional information and documents showing that respondents issued an Original MARINE TRANSPORT LOGISTIC, INC. (“MTL”) Bill of Lading for the ocean transport of the subject Mercedes.

At the outset, it should be noted that page “17” of the ID explains that “...neither MTL nor Complainants has submitted as an exhibit an MTL bill of lading...”. Said Original MTL Bill of Lading was not provided to complainants by respondents due to the fact that the ID was issued based upon the parties’ responses to the Presiding Officer’s Order to Show Cause as to “why the allegations in [the] Complaint regarding the 2006 Mercedes SL65...should not be dismissed for lack of subject matter jurisdiction or for failure to state a claim upon which relief can be granted”, and was reached prior to any discovery taking place in this matter and the development of a full and complete record. Accordingly, complainants were not in possession of same and were unable to produce said document as part of their Exceptions to the ID. As the Commission is aware, neither was said Original MTL Bill of Lading ever produced herein by respondents in their response to the Order to Show Cause or to complainants’ Exceptions.

Annexed hereto as Appendix “1” is a Certification from Mr. Alexander Safonov who was, at the relevant time, a co-owner of corporate entity Middle East Asia Alfa, FZC (“MEAA”) (both of whom are non-parties to the instant matter) and to whom the subject Mercedes was shipped in Dubai. Said Certification contains the Original MTL Bill of Lading issued by the respondents as an Exhibit, and explains that MEAA (listed as “Consignee” on the Bill of Lading”) never purchased said vehicle.

As argued extensively by complainants in their response to the Order to Show Cause, as well as in their Exceptions to the ID, complainants maintain that a contract of carriage existed for the ocean transport of the subject Mercedes and that respondents violated the Shipping Act by mishandling said cargo and/or misdelivering it to Dubai. It is respectfully submitted that the annexed Certification and MTL Bill of Lading serve to contradict respondents’ argument, as stated in their response to complainants Exceptions that the “FMC did not have jurisdiction over MTL,

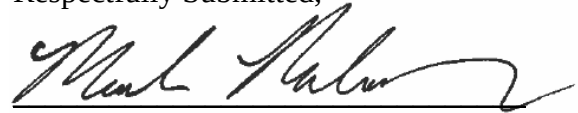
as a common carrier, because MTL did not ‘assume responsibility for transportation’ of the Mercedes.”

CONCLUSION

For the foregoing reasons, complainants respectfully request that the Commission grant leave to supplement the record and take the attachments into account in reviewing the Exceptions.

Dated: March 7, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in dark ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

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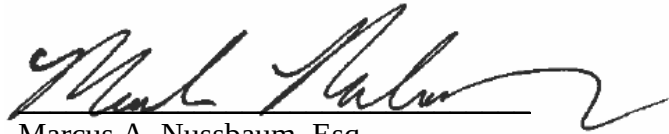
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **PETITION FOR LEAVE TO SUPPLEMENT EXCEPTIONS OF COMPLAINANTS TO THE INITIAL DECISION ISSUED IN THIS PROCEEDING BY THE PRESIDING OFFICER ON JANUARY 17, 2017** and **APPENDIX** upon Respondents' Counsel at the following address:

Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue, 29th Floor
New York, NY 10022
Attn: Eric Chang, Esq.
Attn: Stephen H. Vengrow, Esq.

Law Office of Peter Cipparulo, III, LLC
346 Route 206, Ste. K
Hillsborough, New Jersey 08844

by first class mail, postage prepaid, and by email to: EChang@mmwr.com; svengrow@mmwr.com; and PeterCipparulo@cipplaw.com.

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

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Dated: Brooklyn, New York
March 7, 2017